

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUWT047142: SAMUEL BERGER vs SCIENCE APPLICATIONS
INTERNATIONAL CORPORATION (SAIC)**

08/21/2026 in Department 41

**Motion to Compel to Compel Further Responses to Special Interrogatories, Set One,
Requests for Production of Documents, Set One, and Form Interrogatories, For Waiver of
Objections, and for Sanctions**

CONTIUED

Cutting to the chase, further responses have been provided to the discovery at issue. Further, it appears that the parties engaged in several meet and confer efforts. It is noted that the biggest hurdle in this case relates to the protective order proposed by Defendant. Contrary to Plaintiff's position, it does not appear that the protective order has been signed. Finally, it appears that this time around Defendant has supported many of their objections relating to confidentially, classified and/or private information. (See response to separate statements (and privilege logs)).

Thus, the tentative ruling is to continue the motion. The protective order should be addressed at the hearing and will include why it hasn't. There is no reason why one cannot and/or will not be signed by Plaintiff. Second, once that order has been signed, Defendant should provide further responses, updating its privilege log (as there appears to be some discrepancy therein per Plaintiff.) Finally, the parties should continue to meet and confer and provide a joint statement regarding the items still in dispute. Ultimately, this time around it appears that Defendant is trying to work with Plaintiff and that Plaintiff is making things more difficult.

In terms of sanctions, the recommendation is that no sanctions be awarded to either party. Once again, it appears apparent that the issues presented here should have been able to have been worked out between the parties without Court intervention. Thus, no party should be awarded sanctions.

Initially, it is noted that the motion appears timely according to the Code of Civil Procedure sections 20230.300 and 2031.310. Also, it appears that there was an adequate meet and confer before the motions were filed. Further, separate statements for the motion have been provided. ***Finally, although the motions should have been filed separately,*** it should not be deemed fatal as all separate statements have been provided. Accordingly, these motions are properly considered.

A response may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. If the propounding party, on receipt of a response to interrogatories, deems that (1) an answer to a particular interrogatory is evasive or incomplete, (2) an exercise of the option to produce documents is unwarranted or the required specification of those documents is inadequate, or (3) an objection to an interrogatory/demand is without merit or too general, that party may move for an order

**2025CUWT047142: SAMUEL BERGER vs SCIENCE APPLICATIONS
INTERNATIONAL CORPORATION (SAIC)**

compelling a further response. (See Code Civ. Proc., § 2030.310, subd. (a) and § 2031.310, subd. (a).)

A party is entitled to discover any matter, not privileged, that is relevant to the subject matter. (Code Civ. Proc., § 2017.010.) Relevance is determined in accordance with the liberal policies underlying the discovery procedures and doubts as to relevance should generally be resolved in favor of permitting discovery. (*Colonial Life & Accident Ins. Co. v. Superior Court* (1982) 31 Cal.3d 785, 790.)

“The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2030.300, subd. (b)(1) and § 2031.310, subd. (b)(1).) Once good cause was shown, the burden shifts to the responding party to justify any objection. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

The court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel a further response, unless it finds that the party or attorney acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2030.300, subd. (d) and § 2031.310, subd. (h).)

Code of Civil Procedure sections 2030.300 and 2031.310 provide for a party to bring a motion to compel further responses to interrogatories or requests for production the responding party provides inadequate, incomplete, or evasive responses, or the objections are too general or without merit. The propounding party must submit a declaration under Code of Civil Procedure section 2016.040 stating facts demonstrating good faith and reasonable effort to informally resolve all issues raised by the motion. (Code Civ. Proc., §§ 2030.300, subd. (b)(1) & 2031.310, subd. (b)(2).) A motion to compel further responses to requests for production must further specifically identify facts showing good cause for the discovery. (Code Civ. Proc., § 2031.310, subd. (b)(1).) The motions must be brought within 45 days of service of the responses or supplemental responses. (Code Civ. Proc., §§ 2030.300, subd. (c) & 2031.310, subd. (c).)

“The propounding party must demonstrate that the responses were incomplete, inadequate or evasive, or that the responding party asserted objections that are either without merit or too general.” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403.)

Regarding a motion to compel further responses to requests for production, “[t]he production and inspection procedures contemplated by Code of Civil Procedure section 2031 may be judicially enforced only upon a showing of good cause. The party required to show good cause ‘shall show specific facts justifying discovery and that the matter is relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. But the moving party need only show, in addition to relevance (broadly construed), that his reasons for seeking discovery are within the declared purposes of the Discovery Act (that is, discovery will aid his case) and that discovery may be allowed without doing violence to equity, justice, or the inherent rights of the adversary. The court’s determination necessarily depends on the facts and issues of the particular case.” (*Volkswagenwerk Aktiengesellschaft v. Superior Court* (1981) 123 Cal.App.3d 840, 850.)

**2025CUWT047142: SAMUEL BERGER vs SCIENCE APPLICATIONS
INTERNATIONAL CORPORATION (SAIC)**

In the case of interrogatories, the moving party has no burden of showing good cause for further responses, unlike with requests for production, which carry a statutory requirement of showing good cause. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221.) As the party asserts objections to the discovery requests, the opposing party has the initial burden of justifying them. (*See ibid.*)